
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: February 4, 2026
SUBJECT: Consideration of Bid #S-9-26 for an Agreement between the City of Cheyenne and Aztec Construction Co., Inc., for the Kiwanis Park Trail and Constructed Wetlands project

Bid #S-9-26 was solicited for the Kiwanis Park Trail and Constructed Wetlands project.

Summary of Work: The Work generally consists of construction and site improvements associated with the Kiwanis Park Trail and Constructed Wetlands project, including, without limitation: (i) construction of new wetlands; (ii) construction of new pedestrian gravel trails with interpretive signage; (iii) installation of gravel bird blind pads and foundations for future bird blinds; and (iv) associated reseeding and restoration related to the wetlands and trail improvements. The Work also includes improvements to the existing parking lot to enhance ADA accessibility, as well as removal of existing fencing and installation of new fencing in the lower portion of the park.

Five (5) bidders responded to this bid, and the bid tabulation is attached. The Bids were received from:

1. Aztec Construction Co., Inc.
2. David Bosovets LLC
3. Fencetrak Inc DBA Full Tilt Services
4. GLH Construction LLC
5. Rocky Mountain Sand and Gravel

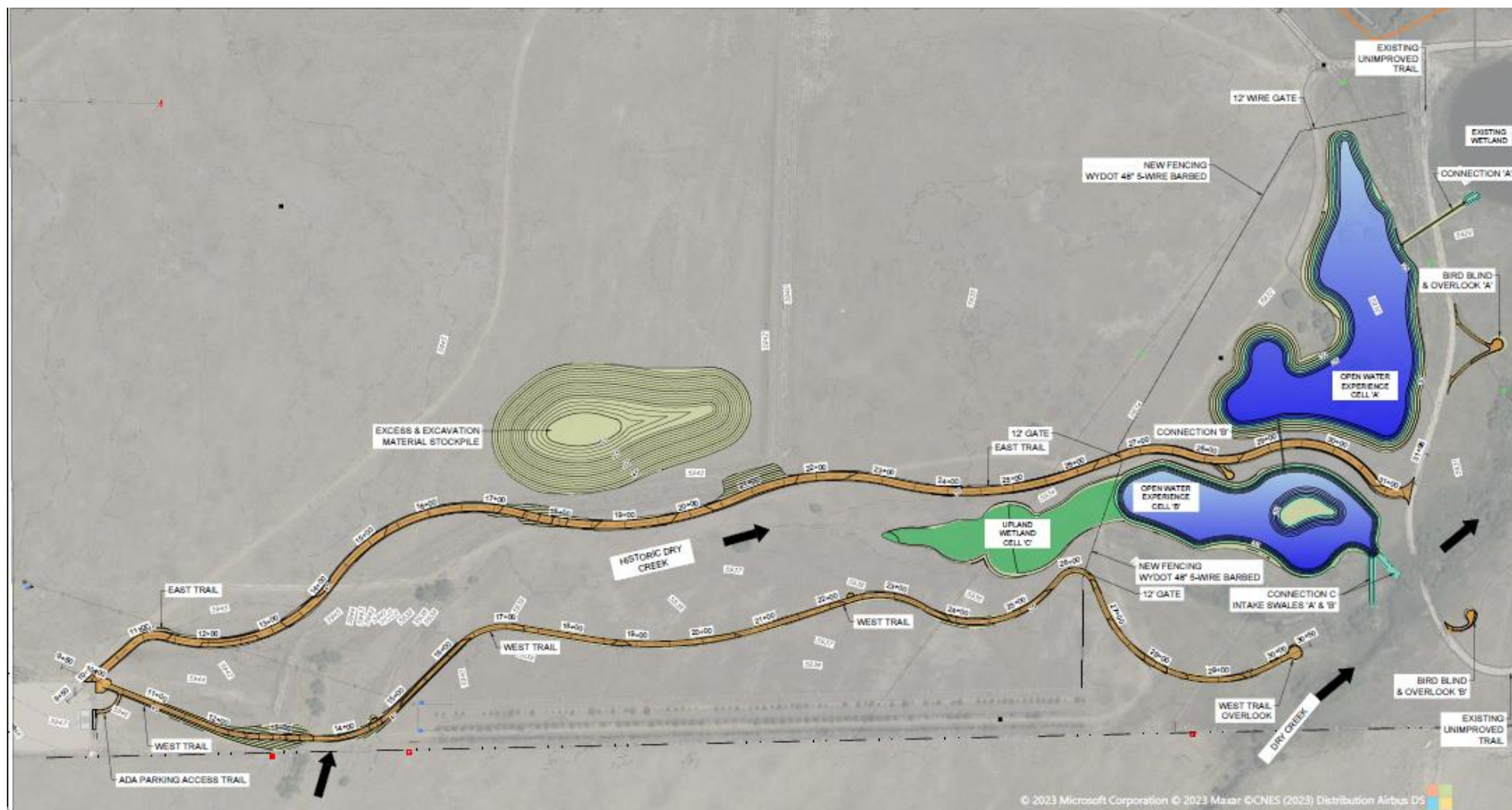
The bids were reviewed by Jean Anderson-Shrednik (Planning), and their recommendation is to accept the lowest responsive bid from Aztec Construction Co., Inc.

The total Bid Award is \$487,560.00

Project Completion is scheduled for December 2026.

Funding: 030-17-1750-42-43420 (2017 Special Purpose Option Tax / Kiwanis Park Land)
\$374,656.00

025-21-2111-42-46510 (Wyoming Department of Environmental Quality Grant)
\$112,904.00





City of Cheyenne

Purchasing

TJ Barttelbort, Purchasing Manager
2101 O'Neil Ave., Room 309, Cheyenne, WY 82001

EVALUATION TABULATION

IFB No. S-9-26

Kiwanis Park Trail and Constructed Wetlands

RESPONSE DEADLINE: January 28, 2026 at 2:00 pm

Report Generated: Wednesday, February 4, 2026

SELECTED VENDOR TOTALS

Vendor	Total
Aztec Construction Co., Inc.	\$487,560.00
Fencetrak Inc DBA Full Tilt Services	\$565,991.00
RockyMountainSand@gmail.com	\$774,928.25
GLH Construction LLC	\$784,010.968
David Bosovets LLC	\$1,745,000.00

KIWANIS PARK TRAIL AND DRAINAGE IMPROVEMENTS

Vendor	Total
Aztec Construction Co., Inc.	\$487,560.00
Fencetrak Inc DBA Full Tilt Services	\$565,991.00
RockyMountainSand@gmail.com	\$774,928.25
GLH Construction LLC	\$784,010.968
David Bosovets LLC	\$1,745,000.00

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. S-9-26

Contract No. _____

THIS AGREEMENT, entered into this _____ day of _____, 2026, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **AZTEC CONSTRUCTION CO., INC.**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Kiwanis Park Trail and Constructed Wetlands**" project all in strict accordance with the Contract Documents.

ARTICLE 2. SUMMARY OF WORK. The Contractor shall furnish all labor, materials, equipment, supervision, and services necessary to perform the Work in strict accordance with this Agreement and the Contract Documents identified in Article 6. The Work generally consists of construction and site improvements associated with the Kiwanis Park Trail and Constructed Wetlands project, including, without limitation: (i) construction of new wetlands; (ii) construction of new pedestrian gravel trails with interpretive signage; (iii) installation of gravel bird blind pads and foundations for future bird blinds; and (iv) associated reseeding and restoration related to the wetlands and trail improvements. The Work also includes improvements to the existing parking lot to enhance ADA accessibility, as well as removal of existing fencing and installation of new fencing in the lower portion of the park.

ARTICLE 3. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract, or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 4. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **December 31, 2026**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 5. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, **a total not to exceed amount of four hundred eighty-seven thousand, five hundred sixty dollars (\$487,560.00)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices

multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

a. The Contractor will be paid on a monthly basis for the percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §16-6-116. Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City, all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 6. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|--------------------------------------|---|
| 1. This Agreement; | 7. Part IV Forms & Notices; |
| 2. Invitation for Bids; | 8. Specifications and Special Provisions; |
| 3. Instructions to Bidders; | 9. Drawings; and |
| 4. Signed Bid Proposal; | 10. Supplemental Federal Provisions & Clauses |
| 5. General Conditions and Insurance; | |
| 6. Supplemental Conditions; | |

This Agreement, together with other documents enumerated in this Article 6, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, that the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kylie Soden, City Clerk

Patrick Collins, Mayor

Contractor

Aztec Construction Co., Inc.

By

Title: _____
1215 E. Fox Farm Road
Suite A
Cheyenne, WY 82007